Wanborough Parish Council Submissions on planning application Ref: S/OUT/13/1555

An urban extension comprising up to 2,380 dwellings, a mixed use local centre and mixed use areas, community use areas, community uses, sheltered accommodation, a primary school, green infrastructure including formal and informal open space, sports facilities, drainage, engineering works including ground remodelling, other infrastructure, demolition and the formation of new accesses from the A420, Old Vicarage Lane, Thornhill Road, on farmland / agricultural land at South Marston and Rowborough north of the A420.

INTRODUCTION

1.1 The application site comprises 162 hectares of predominantly agricultural land / farmland to the north east of the A419, north of the A420 and the London to Bristol Railway line.[1] It lies in countryside partly to the south of South Marston but for the most part at Rowborough Farm to east of the village and south east of Nightingale Lane.

1.2 In its wider physical geographical context the application site constitutes part of the open countryside that lies to the north and east of the built-up area of Swindon. Public access to this rural area is available via a number of existing public rights of way including those that cross the application site.[2]

1.3 The Development Plan for the area of the application site is the saved Swindon Borough Local Plan 2011. The site lies outside any area allocated for built development in the plan and is subject to local landscape character area and rural buffer zone protection policies.

1.4 The proposed development is, therefore, contrary to the Development Plan. Section 38(6) of the Planning and Compulsory Purchase Act 2004 (PCPA) provides that:

(6) If regard is to be had to the development plan for the purpose of any determination to be made under the planning Acts the determination must be made in accordance with the plan unless material considerations indicate otherwise.

1.5 In determining the application, Swindon Borough Council are required by section 70 of the Town and Country Planning Act 1990 (as amended) to have regard to the Development Plan, the Swindon Local Plan 2011. The

[1] Environmental Statement ('ES') 2.2.1, 2.2.9
[2] ES 2.2.11

proposed urban extension development is contrary to the plan. It follows, accordingly, that as a matter of law applying section 38(6) of the PCPA, the application must be refused planning permission unless material considerations indicate otherwise.

National Planning Policy Framework (NPPF)

2.1 Consistent with the statutory requirements of sections 70 TCPA and section 38(6) PCPA, the NPPF says:
11. Planning law requires that applications for planning permission must be determined in accordance with the development plan unless material considerations indicate otherwise….
12...Proposed development that accords with an up-to-date Local Plan should be approved, and <u>proposed development that conflicts should be refused unless other material considerations indicate otherwise….</u>
(Underlining added)

2.2 Paragraph 14 of the NPPF says:

- *where the development plan is absent, silent or relevant policies are out-of-date…*[the local planning authority should grant] *permission unless:*
  - *any adverse impacts of doing so would significantly and demonstrably outweigh the benefits, when assessed against the policies in this Framework taken as a whole; or specific policies in this Framework indicate development should be restricted*.

2.3 The Development Plan, the Swindon Local Plan 2011 (SWLP 2011) is neither absent nor silent with regard to the unsuitability of the application site for housing development. The site lies in open countryside which is required to be protected for its own sake. While it may be argued that the saved plan is out-of-date, to the extent that it seeks to protect countryside it remains consistent with a 'core planning principle' in NPPF: paragraph 17 in '*recognising the intrinsic character and beauty of the countryside'* to the east of Swindon.

2.4 In so far as reliance is placed in the application documentation on the emerging Swindon Borough Local Plan 2026 December 2012 Pre-Submission Document (SBLP 2026) as supportive of the proposed urban extension, that reliance is misconceived for the reasons that are set out

below. The draft local plan is at an embryonic stage and the subject of severe critical scrutiny; and can carry little or no weight in current planning decisions,

2.5 The adverse impacts of granting this urban extension application would significantly and demonstrably outweigh any benefits when assessed against the policies of the NPPF taken as a whole.

THE DEVELOPMENT PLAN: the saved Swindon Local Plan 2011

3.1 Regional Planning Policy Guidance 10 (which subsequently become the Regional Spatial Strategy for the South West ('RSS') has been revoked and no longer forms part of the Development Plan. Similarly, the Secretary of State's 2008 draft proposed changes to the RSS are not 'material considerations' given his subsequent revocation of the strategy. The apparent attempt to place weight on these documents in paragraph 3.3.4 of the Environmental Statement ('ES') as supportive of the urban extension application is, accordingly, unfounded in planning principle and in fact.

3.2 Indeed, the reference in ES 3.3.4 to the *Swindon Principal Urban Area Study* (2003) and the *Swindon Joint Study* (2005) as underlying 'an area of search for a strategic urban extension of 12,000 dwellings to the east of Swindon, to be north and south of the A420' serves as a reminder that the draft New Eastern Villages policy in the SBLP 2026 (the 'soundness' of which has yet to be demonstrated) is founded upon studies that are now, respectively, 10 and 8 years old and which proceeded on the basis of a housing policy that is now revoked.

3.3 Following the revocation of the RSS the Development Plan for Swindon and it environs including the appeal site is contained in the saved policies of the Swindon Local Plan 2011 ('SLP 2011).

3.4 As noted in ES 3.4.8 1, the application site lies within and forms part of the 'Midvale Ridge Landscape Character Area' which is subject to Policy ENV10 of the SLP 2011. Paragraph 3.13 of the plan explains the rationale of the policy:

The key issue is how to reconcile the needs of sustainable development meeting *<u>the economic and social needs of the countryside</u>* *whilst ensuring that the intrinsic qualities of the landscape are protected and preserved.* (Underlining added)

3.4 Policy ENV10 is a landscape protection policy which seeks to meet the economic and social needs of the countryside whilst protecting its landscape setting. It is a countryside protection policy which prohibits the wholly alien 'urban' extension to the Swindon built-up area that is proposed in the application. The application is, accordingly, in conflict with the Development Plan, namely, policy ENV10 of the SLP 2011.

3.5 As recorded in the ES 3.5.9:

The site lies within the Midvale Ridge, a Landscape Character Area that is typified by a rolling land form of valleys, ridge hill and plateau tops, with the ridge dissected by the south/north valleys of the Rivers Ray and Cole. Fields are generally moderate in size with smaller fields around South Marston, and are generally enclosed by hedgerow and woodland. Important settlements occupy the highest hilltops (Blunsden and Highworth) and smaller villages lie within the valleys.

3.6 By definition the proposed building of 2,380 dwellings on the application site would be wholly destructive of the maintenance of this landscape character area as described. And it is notable that the ES, whilst describing the Midvale Ridge landscape character area, fails to address the likely environmental effects of the proposed urban extension upon the landscape of this protected area.

3.7 Saved Policy ENV13: 'Rural Buffers' of the SLP 2011 also applies to the application site. Development in 'Rural Buffers:'

Shall only be permitted where it retains or enhances the existing character of the countryside and:

(a) involves the re-use conversion or extension of existing buildings…or is:

(b) is an essential requirement directly related to the economic or social needs of the rural community or

(c) [park and ride] *or*

(d) [school extension]

3.8 The ‘justification’ for policy ENV13 is to protect

a series of named settlements (Blunsden, Highworth, Stanton Fitzwarren, South Marston, Wanborough…) from further development pressures outwards from Swindon.

The rural buffer embracing the application site is one of:

a series of rural buffers to resist development pressures outwards from Swindon.[3]

3.9 Policy ENV13 is not addressed in the ES. The ‘urban extension’ application proposals would clearly involve the extension of Swindon into the rural buffer zone. The application is, accordingly, in conflict with the Development Plan, namely, Policy ENV13 of the SLP2011.

3.10 In view of the evident conflict of the proposed ‘urban’ extension with the countryside protection polices of the Development Plan SLP2011, section 38(6) PCPA requires that the application be refused unless ‘material considerations’ indicate otherwise.

OTHER MATERIAL CONSIDERATIONS

Swindon Borough Local Plan 2026: Pre-Submission Document: December 2012

Overview

4.1 Significant weight is sought to be placed in the ES on the emerging Swindon Borough Local Plan 2026: Pre-Submission Document: December 2012 (’SBLP2026’) as supportive of the application proposals. For example, ES 2.4.2 states:

The Proposed Development comprises the first phase of the NEV.

And ES 2.5.3 says:

[3] SLP 2011: paragraph 3.16.2

The Proposed Development is being brought forward as the first phase of the proposed NEV. Potential alternative locations for the first phase of the NEV, to the south of the A420, have been rejected as part of the process of developing Supplementary Planning Documents for the New Eastern Villages and South Marston.

ES 3.4.17 – 3.4.39 set out a number of the draft policies of the SBLP2026 which are relied upon by the applicants as supportive of the proposed 'urban extension.'

4.2 Guidance is provided in the NPPF:216 as to the weight that can be attached to emerging plans in planning decisions:

decision-takers may also give weight to relevant policies in emerging plans according to:

- *The stage of preparation…*
- *The extent to which there are unresolved objections…*
- *The degree of consistency of the relevant policies in the emerging plan to the policies of this Framework*

4.3 Despite the decision of Swindon Borough Council to submit the SBLP2026 to the Secretary of Sate in June 2013 there are substantial grounds for concluding that the draft plan remains at an early stage of preparation.

4.4 No sooner had the draft plan been submitted a 'number of concerns' were raised by Inspector Fox in his letter to SBC 16th July 2013. In particular, the inspector was concerned as to whether the draft local plan adequately addressed:

what will be delivered; where it will be delivered; when it will be delivered; and how it will be delivered through the Local Plan and any supporting documents - this last point touches on the need for realistic, implementable plans, which are more than just aspirational.

4.5 The inspector went on to express his serious concern:

That the Local Plan may not provide a sufficiently robust platform for providing new homes in Swindon or an adequate strategy for delivering that objective. He also has concerns relating to the deliverability of a number of other aspects of the Plan…

These included 'Sustainability Appraisal' (why option 2 was chosen?) 'Economic growth,' 'Infrastructure provision' and 'Rapid Transport;' all fundamental issues going to the efficacy of any plan.

4.6 The Inspector's concerns took account of the 'Infrastructure Delivery Plan' published in December 2012. As stated in his letter:

There are no indications [in the Infrastructure Delivery Plan] *as to which schemes are priorities and which, if any, are potential showstoppers. The combined shortfall is just short of £360 million,…it raises doubts about the effectiveness*[4] *of the Plan to deliver unless realistic sources of finance can be identified.*

4.7 The inspector's note of his Exploratory Meeting held on the 13th November 2013 sets out his continuing concern as to the inadequacy of the content of the SBLP2026. In particular, he identified the provision of strategic infrastructure as a 'critical soundness concern' not properly addressed in the draft plan:

At present there seems little indication where the Eastern Villages expansion will be sourced: out of the £47.5 million for schemes such as highway improvements and a secondary school, the shortfall would appear to be 100%, which reinforces the inspector's soundness concern.'

The Inspector was in possession of the SBC's 'Infrastructure Priority List' (CD25.9) prior to the meeting and was clearly not satisfied that it was anything more than aspirational.[5]

4.8 SBC document CD25.19 (December 2013) refers to the 'Infrastructure Priority List' as identifying:

Major infrastructure schemes that are <u>essential to enable and/or unlock development identified in the Plan</u>, or meet wider objectives of sustainable development (Underlining added).

The document also acknowledges that:

[4] NPPF 182: 'Effective - the plan should be deliverable over its period and based on effective joint working on cross-boundary strategic priorities.'
[5] The 'Infrastructure Priority List' December 2012 makes numerous references to 'funding shortfalls' and 'funding not secured' and 'risks – securing adequate funding.'

Further detail is still required regarding timescales and the funding shortfall relating to infrastructure required at the Eastern Villages allocation.

4.9 A number of conclusions may be drawn from SBC's statement CS6: Infrastructure Delivery: CD25.19, namely:

- the Infrastructure Delivery Plan does not demonstrate that the EV policy NC3 can be funded or delivered;
- costings, funding, phasing and delivery of the EV are not at present clear;
- the delivery date (if any) of individual development parcels is dependent on the private market that is unknown at present;
- 'further detailed viability work is being commissioned' and is required before funding bids can be made;
- 'a number of detailed infrastructure projects have been commissioned' to established whether the costs of the necessary infrastructure to enable EV NC3 can be reduced.
- 'In addition work is being commissioned to test scenario timeframes for delivery of necessary transport interventions required as a result of the Kingsdown development…'
- SWELP are negotiating and have yet to produce an SEP.

4.10 These conclusions, that are drawn from SBC's latest document on the viability / fundability of the draft EV NC3 Policy, are a cogent and compelling demonstration that despite the strategic allocation of the EV having been '*on-going for over a decade*' [6] the fundamental question as to whether the EV policy is deliverable still remains to be answered. This is implicitly acknowledged by SBC; hence the need for action on a number of fronts as explained in CD25.19 including 'detailed viability work.' And it is noted, in this context, that Inspector Fox has yet to decide whether

[6] SBC Council Statement CS2: Deliverable and Developable Housing Potential December 20th, 2013 paragraph 14.

issues of deliverability have been adequately addressed by SBC sufficient for the SBLP2026 to go forward to Examination.

4.11 For these reasons the Planning Committee must be informed as a matter of law, that the EV policy NC3 is at a very early stage of its preparation (NPPF:216), and applying NPPF 182 and has yet to be:

- positively prepared by SBC *to meet objectively assessed development and infrastructure requirements.*
- shown by SBC to be *'effective;'* that is, deliverable

4.12 The Committee must also be informed that, in addition to Inspector Fox's serious concerns, there are substantial 'unresolved objections' (NPPF 216) to the SBLP2026 with particular reference to its deliverability.

4.13 It follows, in these circumstances, that the Committee must be advised that the 'soundness' of the SBLP2026 is in serious doubt even before the Examination and can, therefore, carry little weight in the planning balance in determining the planning application.

Piecemeal development

4.14 SBLP2016 Policy SD2: 'The Sustainable Development Strategy identifies 'the proposed New Eastern Villages' as one of a number of strategic housing sites. The EV allocation is planned as a single entity: for example, Policy EC and paragraph 4.80 provide that:

A new district centre to serve the new Eastern Villages will need to be anchored by a food superstore in a highly accessible location

And employment allocations are proposed in Policy EC2 (c.):

At the strategic allocations of …the New Eastern Villages.

4.15 Policy NC3 'New Eastern Villages including Rowborough and South Marston Village Expansion' proposes the comprehensive development of the area and states in terms that the:

The development shall provide …sustainable transport links including

- *a rapid transit link*
- *additional public transport services*

- *an improved gateway junction at White Hart…*
- *a green bridge across the A419…*

4.16 Policy NC3 does not provide for or support the unsustainable piecemeal development of the area such as that proposed in this application for an 'urban extension' of Swindon without regard to the infrastructure requirements for the development of the EV area as a whole. A new secondary school[7] would be required to serve the area and development would need to be of a critical mass to deliver the infrastructure items listed above.[8]

4.17 The development listed at ES 2.3.4 does not include any of these items and the ES proceeds on an assumption that necessary 'highway improvements' will be brought forward in Phase 2 (ES5.8.17 - 5.8.21). As such the proposed urban extension of 2,380 is planned as a discrete development and not the 'first phase of the NEV.'[9] It would constitute a wholly discrete self-contained development unrelated to and inhibitive of the proposed comprehensive and integrated development of the EV area proposed in Policy NC3. As such, the proposed development does not accord with the Development Plan or the emerging SBLP2026 and is unsustainable.

Traffic and Transport

4.18 The WVV Consortium share and adopt the traffic and transport concerns of the Vale of the White Horse District Council set out in the Council's response to consultation dated the 5th December 2013. These are:

- the TA has failed to assess traffic and transport impacts on the wider area (A420);
- the TA has failed to take account of the potential cumulative impacts of the growth that has been proposed along the A420 within the Vale;

[7] See the consultation response of Oxfordshire County Council dated 8th January 2014
[8] SBLP2026: 5.49, 5.50 and 5.75.
[9] ES 2.4.2

- the TA has failed to examine different development scenarios for phase 1 of the EV development and assess the impact on the wider strategic transport network;
- the TA fails to address whether a sufficient level of infrastructure would be delivered with the application to enable the development of the development of the scheme and the wider EV area over time;
- the TA, in using the Paramics model, has a major flaw in that it underestimates the impact of phases 1A and 2 on journey times and whether the traffic impact is significant or not.
- The TA has failed to consider how the proposals are likely to affect rat running through the rural settlements to the east of the EV area.

4.19 The ES Chapter 5: Transport 5.3.25 and following refers to the JMP report and the need recognised there to upgrade existing junctions, for road-widening and for the creation of new junctions on the A420 'so as to provide a balance between demand for A420 through movements and that from the Eastern Villages and South Marston.' Added to that need is consideration of the impact of other developments along the A420 in the Vale district as pointed out by the VWHDC in their response to consultation.

4.20 Attached at Appendix 1 is a 'Technical Review of the Transport Assessment Supporting Planning Application No. S/OUT/13/1555 prepared by Bob Hindhaugh Associates Limited on behalf of the WVV Consortium' which by reference to the 'Bob Hindhaugh Transport Route Congestion Assessment, identifies the shortcomings of the TA accompanying the application, in particular, the inadequacy of the traffic assessment in failing to address future growth on the A420 and the future development of the EV area of which the application site is proposed in the SBLP2026 to form part.

4.21 The ES Chapter 5: Table 5.9 demonstrates the significant adverse impacts the proposed development alone would have on existing junction capacities on the A420 and paragraph 5.5.46 acknowledges;

That flows along the A420 could give rise to potential congestion and therefore driver delay.

Given the failure in the TA to take into account the matters identified by the VOWHDC, in particular, other proposed development along the A420 and the less than adequate assessment of the cumulative impact of the future development of the EV,[10] the assertion in the ES that the impact of the development may be considered not to be significant is not supported by any sound evidence base.[11]

4.13 For these reasons it has been demonstrated by the applicants that the proposed development would be likely to have a severe adverse impact on traffic flows on the A420. Accordingly the application should be refused on this ground (NPPF 32).

5 Year shortfall

5.1 While it is acknowledged that there is a five year shortfall in housing land in the SBC, the application site at 162 acres / 2380 + houses in protected open countryside can only be properly considered for development as part of the Examination of the SBLP2026. To do otherwise would be to ride roughshod over the government's policy of localism, in particular the involvement of the local community in plan making for their area.

CONCLUSION

6.1 In conclusion, the planning application ref: S/OUT/13 should be refused on the following grounds:

- Conflict with the SLP2011 ENV10 and ENV13.
- Unsupported by the SBLP2026 by reason of the lack of weight that can attach to the emerging plan at the present time.
- Piecemeal development in conflict with the comprehensive approach to development of the EV adopted in the emerging SBLP2026.

[10] The ES 5.8.12 – 5.8.13, 5.3.18 assumes the implementation of a number of highway schemes the viability and fundability of which have yet to be demonstrated.
[11] See also the consultation response of the Oxfordshire County Council.

- Prematurity and the denial of localism; the granting of planning permission for a development of this size and scale would pre-determine planning decisions which should be arrived at through the Examination of the SBLP2026.[12]
- Likely severe adverse traffic and transport impacts on traffic flows on the A420.

6.2 For the reasons set out above, the adverse impacts of granting planning permission on the application would significantly and demonstrably outweigh the benefits, when assessed against the policies of the NPPF taken as a whole (NPPF:14).

[12] The Planning System: General Principles published in 2005 by the Office of the Deputy Prime Minister (ODPM) advises:

- 17 In some circumstances, it may be justifiable to refuse planning permission on grounds of prematurity where a DPD is being prepared or is under review, but it is not yet adopted. This may be appropriate where the proposed development is so substantial, or where the cumulative effect would be so significant, that granting permission could prejudice the DPD by predetermining decisions about the scale, location and phasing of new development which are being addressed in the policy of the DPD.